

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lucca Abele	Team: Squad #10	CCRB Case #: 202309018	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 09/11/2023 6:00 PM	Location of Incident: Bond Street between Douglass Street and Butler Street	18 Mo. SOL 3/11/2025	Precinct: 76		
Date/Time CV Reported Fri, 09/22/2023 4:57 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 09/22/2023 4:57 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Md Majumder	25540	972403	076 PCT
2. PO Gabriel Pamphile	04331	972847	076 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Joshua Mark	17795	975007	076 PCT
2. SGT Juan Vazquez	03285	949763	076 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Gabriel Pamphile	Abuse: Police Officer Gabriel Pamphile stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Within NYPD Guidelines
B . PO Md Majumder	Abuse: Police Officer Md Majumder took photographs of § 87(2)(b)	B . Within NYPD Guidelines
C . PO Gabriel Pamphile	Abuse: Police Officer Gabriel Pamphile took photographs of § 87(2)(b)	C . Within NYPD Guidelines
D . PO Gabriel Pamphile	Abuse: Police Officer Gabriel Pamphile failed to provide § 87(2)(b) with a business card.	D . Unfounded
E . PO Md Majumder	Abuse: Police Officer Md Majumder failed to provide § 87(2)(b) with a business card.	E . Substantiated
F . PO Gabriel Pamphile	Abuse: Police Officer Gabriel Pamphile failed to provide § 87(2)(b) with a business card.	F . Substantiated
G . PO Gabriel Pamphile	Abuse: Police Officer Gabriel Pamphile threatened to issue a summons to § 87(2)(b)	G . Substantiated
H . PO Gabriel Pamphile	Abuse: Police Officer Gabriel Pamphile improperly used his body-worn camera.	H . Substantiated
I . PO Md Majumder	Abuse: Police Officer Md Majumder improperly used his body-worn camera.	I . Substantiated

Case Summary

On September 22, 2023, § 87(2)(b) filed this complaint with the CCRB online.

On September 11, 2023, at approximately 6:00pm, at Bond Street between Douglass Street and Butler Street in Brooklyn, PO Gabriel Pamphile, of the 76th Precinct, stopped § 87(2)(b) at a vehicle safety checkpoint (**Allegation A: Abuse of Authority – Vehicle Stop, within NYPD guidelines**). PO Md Majumder, PO Joshua Mark, and Sgt. Juan Vazquez, all of the 76th Precinct, were also present. § 87(2)(b) boyfriend, § 87(2)(b) was in the vehicle. PO Pamphile and PO Majumder asked for § 87(2)(b) license, registration, and insurance. § 87(2)(b) only had a photo of her license. PO Majumder and PO Pamphile took photos of § 87(2)(b) vehicle and documents (**Allegations B and C: Abuse of Authority – Photography/Video, within NYPD guidelines**).

PO Majumder issued § 87(2)(b) two summonses, and § 87(2)(b) asked him for a business card. § 87(2)(b) asked PO Pamphile for a business card. PO Majumder's business cards were in the police vehicle, so he asked PO Pamphile to provide a business card to § 87(2)(b). PO Pamphile refused to provide a business card to both § 87(2)(b) and § 87(2)(b) (**Allegation D: Abuse of Authority – Failure to provide RTKA card, unfounded, Allegations E and F: Abuse of Authority – Failure to provide RTKA card, substantiated**).

PO Pamphile and PO Majumder returned to the police vehicle and turned off their BWC. As they drove away PO Pamphile told § 87(2)(b) that she could have received a summons for not having her license (**Allegation G: Abuse of Authority – Threat of Summons, substantiated, Allegations H and I: Abuse of Authority – Improper use of body-worn camera, substantiated**).

The investigation was unable to obtain a statement from § 87(2)(b).

The investigation obtained Body-Worn Camera footage from PO Majumder (BR 01), PO Pamphile (BR 02), PO Mark (BR 03), and Sgt. Vazquez (BR 04). The relevant aspects of this footage will be discussed below.

No arrests resulted from this incident. Two summonses resulted from this incident (BR 05).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Gabriel Pamphile stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation (B) Abuse of Authority: Police Officer Md Majumder took photographs of § 87(2)(b).

Allegation (C) Abuse of Authority: Police Officer Gabriel Pamphile took photographs of § 87(2)(b).

§ 87(2)(b) stated (BR 06) that she was driving with her boyfriend, § 87(2)(b) when PO Pamphile signaled with his hand for her to pull over. PO Pamphile approached the driver's side and PO Mark approached the passenger. PO Pamphile told § 87(2)(b) to turn off her vehicle and asked her for her license, registration, and insurance. § 87(2)(b) told the officers that she did not have her license with her and that the vehicle was her mother's. PO Pamphile took out a tablet and took photos of § 87(2)(b) phone which had a photo of her license, her registration, insurance, and the registration sticker on her car. § 87(2)(b) asked PO Pamphile why he took photos, but he did not answer and told her he did not know why she had been pulled over.

§ 87(2)(b) did not provide a statement to the investigation.

PO Pamphile stated (BR 09) that he was at the vehicle checkpoint with PO Majumder, Sgt. Vazquez, and PO Mark. As § 87(2)(b) vehicle pulled into the checkpoint, PO Pamphile noticed that § 87(2)(b) vehicle had a defective front right headlight. The vehicle infraction did not contribute to the officers' decisions to stop § 87(2)(b) vehicle; § 87(2)(b) was stopped because her vehicle was within the selected randomized parameters of the checkpoint. PO Pamphile asked § 87(2)(b) for her license, registration, and insurance. § 87(2)(b) did not provide a license. PO Pamphile gave § 87(2)(b) the option to provide a photo of her license, which she did. PO Pamphile and PO Majumder took photos of § 87(2)(b) documents because every vehicle

stopped at a vehicle safety checkpoint had to be reported. Reports required the vehicle make, model, vin number, plate number, and insurance information. Similar information was sometimes needed to write summonses. PO Pamphile took all the photos on his NYPD issued phone.

PO Majumder's statement (BR 10) was generally consistent with that of PO Pamphile with the following exceptions noted. Every third vehicle at the vehicle safety checkpoint was stopped. After PO Majumder approached § 87(2)(b) vehicle, he took a photo of the registration on the front windshield, the license plate, and registration provided by § 87(2)(b). PO Majumder took a photo of § 87(2)(b) phone which had a photo of her license pulled up. PO Majumder only took photos on his work phone. PO Majumder took photos to run all the information, write summonses, and write a stop report.

PO Mark (BR 07) and Sgt. Vazquez's (BR 08) statements were consistent with those of PO Pamphile and PO Majumder.

PO Pamphile's and PO Majumder's BWCs (BR 01 and BR 02) consistently capture both officers approaching § 87(2)(b) vehicle on the driver's side. PO Pamphile then asks § 87(2)(b) for her license, registration, and insurance. At timestamp 26:25 of PO Majumder's BWC (BR 01), PO Majumder takes photos of § 87(2)(b) documents. At timestamp 28:02, PO Majumder takes a photo of § 87(2)(b) license photo on her phone.

PO Majumder's department issued cell phone (BR 11) had two photos of § 87(2)(b) registration sticker on the windshield of her car, one photo of her license plate, one photo of her paper registration, one photo of her insurance, one photo of her phone with a photo of her license pulled up, and photos of two summonses. NYPD Legal confirmed that both PO Pamphile and PO Majumder took photos on their department issued phones of § 87(2)(b) documents (BR 12).

A vehicle checkpoint form (BR 13), prepared by Sgt. Vazquez, shows that he, PO Majumder, PO Mark, and PO Pamphile, were assigned to stop every third vehicle passing by the intersection of Bond Street and Douglass Street.

§ 87(2)(b) received two summonses (BR 05), prepared by PO Majumder.

PO Majumder prepared a vehicle report (BR 14) documenting the stop.

Patrol Guide procedure 221-16 (BR 16) states that members of service may establish a vehicle checkpoint for the primary purpose of a vehicle safety check. Whenever a vehicle checkpoint is established members of service are to stop vehicles in a non-arbitrary manner (e.g., every third vehicle.), as directed by the commanding officer concerned. Members of service must prepare a vehicle checkpoint form when doing so.

Patrol Guide procedure 219-32 (BR 15) notes, under operational considerations, that members are permitted, but not required, to use department smartphones/tablets to photograph and/or video record encounters with the public, as they may help provide context to enforcement encounters.

It is undisputed that officers stopped § 87(2)(b) vehicle § 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **within NYPD guidelines**.

It is undisputed that PO Majumder and PO Pamphile took photos of § 87(2)(b) documents. § 87(2)(g)

Therefore, it is recommended that **Allegations B and C** be closed as **within NYPD guidelines**.

Allegation (D) Abuse of Authority: Police Officer Gabriel Pamphile failed to provide § 87(2)(b) with a business card.

Allegation (E) Abuse of Authority: Police Officer Md Majumder failed to provide § 87(2)(b) with a business card.

Allegation (F) Abuse of Authority: Police Officer Gabriel Pamphile failed to provide

§ 87(2)(b) with a business card.

§ 87(2)(b) stated (BR 06) that PO Majumder gave her a traffic ticket for a defective headlight and a court appearance ticket for a suspended registration. § 87(2)(b) told PO Pamphile that he wanted a business card. Simultaneously, § 87(2)(b) told PO Majumder that she wanted a business card. PO Majumder looked at PO Pamphile and began to reach for a business card. PO Pamphile told § 87(2)(b) and § 87(2)(b) that they did not need a business card. § 87(2)(b) told PO Majumder and PO Pamphile that she still wanted a business card, but neither officer gave § 87(2)(b) or § 87(2)(b) a business card. PO Majumder and PO Pamphile returned to the police vehicle behind § 87(2)(b) vehicle.

§ 87(2)(b) did not provide a statement to the investigation.

PO Pamphile stated (BR 09) that PO Majumder wrote § 87(2)(b) two summonses for a summons for a defective headlight and suspended registration. PO Pamphile's name was not on the summons. § 87(2)(b) also could have received an additional summons for not having her license. PO Majumder delivered the summonses to § 87(2)(b) while PO Pamphile stood near § 87(2)(b) car. No one asked PO Pamphile for a business card, and he did not provide one because he was not asked for a business card. § 87(2)(b) and § 87(2)(b) asked PO Majumder. PO Pamphile stated that an officer would be required to provide a business card when asked only if the civilian did not receive a summons.

PO Majumder's statement (BR 10) was generally consistent with that of PO Pamphile with the following exceptions noted. As PO Majumder gave § 87(2)(b) the summonses, she asked for a business card. PO Majumder did not have his business cards, as they were in the police vehicle, so he asked PO Pamphile if he could provide his business card. PO Pamphile told § 87(2)(b) that she did not need a business card because she received a summons. PO Majumder told § 87(2)(b) that his information was on the summons.

PO Mark (BR 07) and Sgt. Vazquez (BR 08) consistently stated that they left the checkpoint while § 87(2)(b) vehicle was still stopped.

PO Pamphile and PO Majumder's BWC (BR 01 and BR 02) consistently captures both officers delivering § 87(2)(b) two summonses. At timestamp 1:02:27 of PO Majumder's BWC (BR 01), § 87(2)(b) asks PO Majumder for a business card. PO Majumder then asks PO Pamphile to give a business card. PO Pamphile tells PO Majumder that § 87(2)(b) does not need a business card because she received a summons. At timestamp 1:02:39 of PO Pamphile's BWC (BR 02), he leans down and tells § 87(2)(b) that she does not need a business card because she received a summons. At timestamp 1:02:45 of PO Majumder's BWC (BR 01), § 87(2)(b) again states that she wants a business card. PO Majumder then asks PO Pamphile if he has his business card. PO Pamphile then tells PO Majumder to tell § 87(2)(b) to drive safely, both officers walk away. At no point does § 87(2)(b) request a business card from either officer.

Administrative Code 14-174 (BR 17) states that officers must offer a business card to any individual with which they conduct a law enforcement activity, including noncustodial questioning, at the conclusion of any such activity that does not result in an arrest or summons. Officers must also provide business cards to any civilian who requests one, regardless of whether that civilian was the subject of a law enforcement activity that did result in an arrest or summons. Business cards need to include the officer's name, rank, shield number, and command.

Administrative Guide 304-11 states (BR 18) that officers must provide business cards, as appropriate, at the request of members of the public. Officers are to offer members of the public a generic Right to Know Business Card – General with identification information written down legibly, if supply of pre-printed Right to Know Business Cards becomes depleted.

Comprehensive BWC footage clearly shows that § 87(2)(b) did not request a business card from PO Pamphile. It is therefore recommended that **Allegation D be unfounded.**

It is undisputed that § 87(2)(b) requested a business card from PO Majumder, that PO Pamphile was present and heard the request, and that PO Majumder asked PO Pamphile to provide

her with one. Comprehensive BWC footage clearly shows that § 87(2)(b) requests a business card twice. § 87(2)(g)

§ 87(2)(b) it is undisputed that PO Majumder and PO Pamphile failed to provide § 87(2)(b) with a personal business card upon request. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegations E and F be Substantiated.**

Allegation (G) Abuse of Authority: Police Officer Gabriel Pamphile threatened to issue a summons to § 87(2)(b)

Allegation (H) Abuse of Authority: Police Officer Gabriel Pamphile improperly used his body-worn camera.

Allegation (I) Abuse of Authority: Police Officer Md Majumder improperly used his body-worn camera.

§ 87(2)(b) stated (BR 06) that PO Pamphile and PO Majumder drove up next to the driver's side of her vehicle with the windows down. PO Pamphile was in the driver's seat, and PO Majumder was in the passenger seat. PO Pamphile said to § 87(2)(b) "We could have given you a summons for not having your driver's license on you. You don't need a business card." PO Pamphile and PO Majumder drove away.

PO Pamphile stated (BR 09) that he deactivated his body-worn camera when he returned to the police vehicle. PO Pamphile then drove parallel to § 87(2)(b) vehicle with the passenger side window down. PO Pamphile realized that he should have informed § 87(2)(b) that she could not keep driving without her physical driver's license. PO Pamphile informed § 87(2)(b) that she could receive a summons for not having a license, so she knew she could not keep driving without a license. § 87(2)(b) did not respond in any way. Since it was a short conversation, PO Pamphile did not reactivate his body-worn camera.

PO Majumder's statement (BR 10) was generally consistent with that of PO Pamphile with the following exceptions noted. PO Majumder got into the passenger seat of the police vehicle and turned off his body-worn camera. § 87(2)(b) waited in her car and put her driver's side window down; PO Majumder thought § 87(2)(b) wanted to talk. PO Pamphile and PO Majumder drove parallel to § 87(2)(b) vehicle and PO Pamphile told § 87(2)(b) that they could have written her a summons for her driver's license. PO Majumder's and PO Pamphile's body-worn cameras were both off.

There is no BWC footage of this interaction as both PO Majumder and PO Pamphile deactivated their BWC (BR 01 and BR 02) prior to PO Pamphile informing § 87(2)(b) that she could have received an additional summons.

New York Vehicle and Traffic Law § 509 (BR 19) states that no person shall operate or drive a motor vehicle unless he is duly licensed. Any violation is punishable by a fine, or by imprisonment.

New York Vehicle and Traffic Law § 507 (BR 26) states that failure by licensee to exhibit a license valid for operation shall be presumptive evidence that he is not duly licensed.

Patrol Guide procedure 212-123 (BR 20) states that officers are required to activate BWC prior to engaging in any police action and to record any interactions that escalate to become adversarial or may hold evidentiary value.

It is undisputed that while § 87(2)(b) did not have her physical license with her as she operated a motor vehicle, she provided sufficient proof that she was a licensed driver. § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation G be Substantiated.**

It is undisputed that PO Pamphile and PO Majumder failed to reactivate their BWC when PO Pamphile informed § 87(2)(b) that she could be issued a summons for not driving with her

license. § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED] It is
therefore recommended that **Allegations H and I** be **Substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) [REDACTED] has been a party (**BR 21**).
- Police Officer Md Majumder has been a member-of-service for two years and this is the first CCRB complaint to which he has been a subject.
- Police Officer Gabriel Pamphile has been a member-of-service for two years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- As of December 27, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (**BR 24**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 10

Investigator:	<u>Lucca Abele</u>	<u>Inv. Abele</u>	<u>12/20/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Maura R. Roche</u>	<u>IM Maura R. Roche</u>	<u>01/08/2024</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date